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Luo customary law and marriage laws customs

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An example of this point was given by the Elder KHARALA MADORO of KARACHUONYO, President of the African Tribunal at KOSELE:—

“A party of my own JOKAKWARO had gone to ‘capture’ a bride and during the fighting the brother of the bride was killed. The wedding was off immediately. The case was taken to a court of elders who decided that compensation of 12 head of cattle should be paid by my JOKAKWARO to the family of the dead man. The brothers of the dead man refused to accept the cattle. I, myself, offered a bull to one of his brothers, on the grounds that if they accepted these ‘blood’ animals they could never marry into our lineage. Distant relatives of the dead man took the animals and a few years later a man of his clan married a girl of our lineage and the first child of that marriage has been named after him.”

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Nuptials

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Informal In-Group
Justice

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Offenses Against Life

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Purification And
Atonement

12. In former times it was necessary for the young Luo bent on MEKO to steal the girl at first light while her village slept. Young girls of this age normally sleep in the SIWINDHE, the grandmother's house. The method was to send a woman from their JOKAKWARO, who was related in some way to the lineage of the girl, to offer the grandmother a gift in order that she would know what was to happen. The grandmother also received a gift when they arrived to steal the girl. It was rare that the parents of the girl knew the exact time of the capture, but they would always have a fair idea that the day was not far off.

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Mode Of Marriage

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Nuptials

13. Bribing the grandmother was known as CHULO DHOGA BOR, to put fat into her mouth, and this is still used to describe modern methods of bribery. ERE

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Gift Giving

BOR? Where is the fat? Meaning where is my present for doing so and so?

583
Mode Of Marriage

14. Another method of capture, MEKO, was for the young men to arm themselves and dress themselves as if for war and wait by a footpath for any eligible girl to pass. In former times it was immaterial that they did not know the girl because once she was captured she would remain in the village unmolested until the JAGAM was able to report on the family of the girl or her particular behaviour. This gave some point to the long discussions about consanguinity which occur even today but now in a joking way because those taking part in the discussions know of any relationship long before this stage is reached. If a girl was deflowered without witnesses, the JOLUO regarded this as rape and this would lead to war.

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Regulation Of
Marriage

585
Nuptials

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Sex And Marital
Offenses

15. Apart from consanguinity, the JOLUO investigated the family of the girl carefully for signs of witchcraft; for evidence of blood feud; for a history of twins in the family; and these were sufficient reason to regard the marriage as being bad because the union would not be fertile. The first born child, KAYO, of a woman would not be allowed to marry the first born of another; similarly, the last born, CHOGO, could not marry another CHOGO; a boy who was the only child, MIDEMBRA, could not marry a girl who was the only child, even if there had been other children who had died.

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Basis Of Marriage

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Regulation Of
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